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Preventing homelessness key to solving the current crisis

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As California grapples with an unprecedented homelessness crisis, there has been much discussion about helping those currently on the streets, with far less focus on how we can prevent homelessness in the first place.

Yet prevention is clearly a key piece of the puzzle, particularly as the number of Californians slipping into homelessness each year continues to outpace local efforts to provide shelter. According to the 2019 homeless count, officials in Los Angeles County housed more than 21,000 people in 2018, yet homelessness still increased 12 percent countywide. If we're serious about addressing this crisis, preventing homelessness must be at the top of our agenda.

With this goal in mind, state legislators moved forward last year on a variety of new laws to assist those most at risk. These included sweeping measures to protect tenants from large rent increases and to enhance legal protections and services for those facing eviction. We also allocated billions of dollars to support local initiatives, assist those struggling with mental illness or addiction, and increase the supply of affordable housing.

Despite these efforts, there is a real possibility that our homeless population will continue to grow, especially as California faces the imminent loss of thousands of units of affordable housing. According to the California Housing Partnership, nearly 35,000 subsidized affordable rental units in California are at risk of converting to market rate units as state and federal subsidies and deed restrictions expire over the next five years. Allowing these affordable units to suddenly disappear would have catastrophic consequences for tens of thousands of vulnerable Californians and severely setback efforts to address our homeless crisis.

To address this looming challenge, I recently introduced Assembly Bill 2058, which would create a new $500 million Affordable Housing Preservation Tax Credit.

This credit would incentivize property owners to keep units affordable, and would help preserve roughly 25,000 units that are currently at risk of becoming unaffordable to low-income renters. Under this proposal, preserving a unit of affordable housing costs approximately $20,000, far less than the cost of building a new affordable unit, which can exceed $600,000 in some urban areas.

This targeted front-end investment will have an immediate impact, which is part of the reason why Assembly Bill 2058 is backed by a bipartisan coalition of 20 legislators from across California.

In searching for other cost-effective strategies to reduce homelessness, we also sought to leverage research from the University of California, which has identified temporary housing with family or friends as a critical and underutilized tool in preventing homelessness.

Notably, this research has revealed that a surprising number of those currently experiencing homelessness have relatives or friends who—under the right circumstances—could provide them with temporary shelter and an opportunity to stabilize until they can find more permanent housing. However, until recently, many of those willing to lend a helping hand have been unable to do so, as taking in a guest for more than a few days would violate the terms of their lease and place their own housing in jeopardy.

With this challenge in mind, we set out last year to create a new legal framework in California that would encourage landlords and tenants to work together to keep folks off the streets.

In doing so, we sought to balance three primary objectives: (1) providing greater flexibility for tenants willing to

take in a friend or loved one; (2) ensuring that landlords can effectively manage and operate their property; and (3) providing basic legal protections to individuals provided with temporary housing. The final product—Assembly Bill 1188—was crafted with input from homeless services providers, tenants' rights advocates, apartment owners, and others, and ultimately secured bipartisan support from across the political spectrum.

Assembly Bill 1188 was signed by Governor Newsom and officially became law on January 1, 2020. The state must now work with advocacy groups, service providers, and local governments to ensure broad awareness of this new opportunity to help those in need.

By itself, this new law will not solve homelessness, but it does offer an important new tool that can assist those most at risk, conserve public resources, and reduce the number of Californians living on our streets. The same is true for Assembly Bill 2058, which is working its way through the legislative process.

While local authorities may be on the front lines in responding to homelessness, those of us in state government will continue to focus on how we can provide more tools and resources to address this crisis, while insisting on greater accountability, swift action, and demonstrated results.

Jesse Gabriel is the author of Assembly Bills 2058 and 1188 and a member of the California state Assembly representing the San Fernando Valley.

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